

11. 9:00 AM CASE NUMBER: C25-03352
CASE NAME: LUIS GOMEZ PASTRANA VS. DCS TRANSPORTATION
AN ORDER OF DISMISSAL AND/OR ORDER FOR TRANSFER OF VENUE
FILED BY: DISCOUNT COURIER SERVICES, INC.
TENTATIVE RULING:

Defendant's motion to transfer venue is **continued**, *sua sponte*, to September 16, 2026 at 9:00 a.m. for supplemental briefing from the Plaintiff, as set forth below.

This is a putative class action and representative action under California's Private Attorneys General Act alleging wage and hour violations. Plaintiff Luis Gomez Pastrana, a former courier employed by Defendant Discount Courier Services, Inc. (DCS), filed a First Amended Complaint on December 11, 2025, asserting nine causes of action for various violations of the Labor Code.

On January 20, 2026, DCS filed a Motion to transfer venue of this action to Orange County. DCS's moving papers asserted the existence of a venue selection provision in Plaintiff's employment contract, but did not attach the contract. DCS's Chief Executive Officer, Omar K. Elkabbara, submitted a declaration stating that he was "aware that Luis Gomez Pastrana signed a written agreement requiring venue of this action in Orange County, California," without further elaboration.

On July 23, 2026 Plaintiff filed an opposition asserting, among other things, that DCS failed to establish the existence or enforceability of a venue selection clause through admissible evidence, noting that Elkabbara apparently lacked personal knowledge of any contract, and DCS had failed to produce the writing itself. Plaintiff pointed out that the Court could not determine the venue provision's scope or applicability to this case without reviewing the contract.

On July 29, 2026 DCS filed a reply brief accompanied by a Supplemental Declaration of Omar K. Elkabbara attaching a written document entitled Independent Contractor Agreement, and attaches a copy as Exhibit A. The agreement contains a provision captioned "Venue" stating: "In any court litigation arising out of this agreement, venue is in the Superior Court of the State of California, County of Orange."

The general rule of motion practice . . . is that new evidence is not permitted with reply papers . . . '[T]he inclusion of additional evidentiary matter with the reply should only be allowed in the exceptional case . . .'" (*Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1537-1538.) If the evidence is permitted, the other party should be given the opportunity to respond. (*Id.* at p. 1538.)

Accordingly, the hearing is **continued** to September 16, 2026 at 9:00 a.m. Plaintiff may file a supplemental brief addressing the enforceability of the venue selection clause no later than September 2, 2026. The brief shall not to exceed 10 pages, exclusive of exhibits.

12. 9:00 AM CASE NUMBER: MSC19-00771

CASE NAME: GREG HART VS THOMAS MILWAY

MOTION TO ENFORCE REMITTITUR FILED ON 05/14/26 BY CHARLES WILCOXSON & SHERRY WILCOXSON

FILED BY:

TENTATIVE RULING:

Cross-Complainants Charles and Sherry Wilcoxson's motion to enforce the remittitur is granted in part and denied in part. The August 18, 2023, order on the Milways' motions for summary judgment and adjudication is vacated with new rulings on those motions provided below. Further, the Court sets a trial setting conference for August 27, 2026, at 8:30a.m.

Ruling on Motions for Summary Judgment

The Milways filed motions for summary judgment or adjudication as to their cross-complaint and the Wilcoxsons' cross-complaint. On August 18, 2023, the Court granted summary judgment on the Wilcoxsons' cross-complaint and it granted summary adjudication on part of the Milways' claims against the Wilcoxsons. The Milways subsequently dismissed their final claim against the Wilcoxsons for declaratory relief regarding the 28' wide strip of land beneath Alwin Road. (Dismissal filed 824/23.)

The Wilcoxsons appealed. The Court of Appeal found that there was a triable issue as to the Wilcoxsons' prescriptive easement claim. The Court of Appeal reserved in part and affirmed in part. (*Milway v. Wilcoxson*, case no. A168895; opinion filed 12/24/24.)

The Court of Appeal held that "Summary judgment of the Wilcoxsons' cross-complaint as to the third, fourth, and fifth causes of action are reversed. Summary judgment of the Wilcoxsons' cross complaint as to the first and second causes of action are affirmed. Summary adjudication of the Milways' cross-complaint as to the first (the Wilcoxsons' claim to any 'title, right, estate, lien or interest' in the Milway property) and third (cause of action to quiet title) issues are reversed. Summary adjudication of the Milways' cross-complaint as to the second issue (the Wilcoxsons' claim that a 28-foot strip of land extending from 20 Alwin Road to Homestead Avenue is part of the Harts' property) is affirmed." (*Milway v. Wilcoxson*, case no. A168895; opinion filed 12/24/24.)

The Wilcoxsons filed this motion to have the Court follow the remittitur. The Court will follow the remittitur. The August 18, 2023, order is vacated and the Court enters the following order in the parties' motions for summary judgment and adjudication as follows:

Summary adjudication of the Wilcoxsons' cross-complaint as to the third, fourth, and fifth causes of action are denied. Summary adjudication of the Wilcoxsons' cross-complaint as to the first and second causes of action are granted.

Summary adjudication of the Milways' cross-complaint as to the first issue (cause of action one for declaratory relief regarding the Wilcoxsons' claim to any "title, right, estate, lien or interest" in the Milway property) and the third issue (cause of action three for quiet title) are denied. Summary adjudication of the Milways' cross-complaint as to the second issue (cause of action one for declaratory relief regarding the Wilcoxsons' claim that a 28-foot strip of land extending from 20 Alwin